

Pujari Raja Sekhar Reddy vs Mudireddy Loukya on 28 September, 2022

Author: Battu Devanand

Bench: Battu Devanand

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THE HON'BLE SRI JUSTICE BATTU DEVANAND

CIVIL REVISION PETITION NO.1893 of 2022

O R D E R:

This Civil Revision Petition is filed challenging the Order dated 09.05.2022 in I.A.No.569 of 2021 in FCOP No.37 of 2021 on the file of the Family Court Judge-cum-VII Additional District Judge, Anantapur.

02. Heard learned Counsel for the Petitioner and perused the material available on record.

03. The Petitioner is the Petitioner and the respondent is the Respondent in FCOP No.37 of 2021.

04. The case of the petitioner is that the Petitioner filed FCOP No.37 of 2021 for dissolution of the marriage. Thereafter, the respondent filed I.A.No.569 of 2021 in FCOP No.37 of 2021 for grant of interim maintenance and for legal expenses. The trial Court after hearing both sides granted maintenance to a tune of Rs.15,000/- to the petitioner. Challenging the same, the present Civil Revision Petition is filed.

05. Learned counsel for the petitioner submits that the Order of the trial Court is contrary to law, weight of evidence and probabilities of the case. The trial Court erred in so far as directing the petitioner to pay an amount of Rs.15,000/- to the respondent without taking into account that the petitioner/husband has preferred Original Petition for dissolution of marriage on the ground that the respondent has left the company of the petitioner without any valid reason. The trial Court failed to appreciate the fact that the respondent/wife prima facie failed to establish that she has got valid reasons to leave the company of her matrimonial home and thereby entitling to seek interim maintenance from her husband. The trial Court also erred in not taking into consideration the financial capacity of the petitioner while deciding the quantum of interim maintenance to be paid to the petitioner since the respondent has filed no documentary evidence to substantiate her contention that the petitioner has been getting a salary as mentioned in her petition.

o6. Having heard the submissions of the learned counsel for the petitioner and upon perusal of the material available on record, as per Section 24 of the Hindu Marriage Act, during the pendency of the proceedings, the respondent is entitled for interim maintenance. Though the petitioner simply denied the allegation of his salary for an amount of Rs.80,000/- per month, he did not place any material particulars to consider his salary and deductions if any to that effect. Even though the petitioner is contending that the respondent is having sufficient means to maintain herself, he did not place any material evidence before the Court for consideration. As there is no material placed by the petitioner before the trial Court, the trial Court rightly fixed Rs.15,000/- per month as interim maintenance to the petitioner.

o7. Therefore, this Court do not find any irregularity or illegality in the order dated 09.05.2022 passed by the trial Court in I.A.No.569 of 2021 in FCOP No.37 of 2021 and accordingly, this Court is not inclined to interfere into the Order passed by the Trial Court. Therefore, the present Civil Revision Petition is liable to be dismissed.

o8. Accordingly, this Civil Revision Petition is dismissed.

o9. There shall be no order as to costs.

As a sequel, miscellaneous petitions, if any, pending in this petition shall stand closed.

JUSTICE BATTU DEVANAND Dt. 26.09.2022 eha THE HON'BLE
SRI JUSTICE BATTU DEVANAND CIVIL REVISION PETITION NO.1893 of 2022 Dt. 26-09-2022
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